Republic of the Philippines
PROVINCE OF BOHOL
Municipality of Ubay

Office of the Sangguniang Bayan

SESSION NO. 23 **JANUARY 22, 2020**

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG BAYAN OF UBAY, BOHOL HELD ON JANUARY 22, 2020 AT THE SB SESSION HALL.

Present:

Hon. Efren S. Tanjay	- SB Member/Pres. Officer
Hon. Joan Abad- Balduman	- SB Member
Hon. Maximo O. Boyles Jr.	- SB Member
Hon. Clarita V. Alesna	- SB Member
Hon. Constancio V. Atuel	- SB Member
Hon. Eutiquio B. Del Valle	- SB Member
Hon. Violeta D. Reyes	- SB Member
Hon. Nador A. Vallecera	- ABC President

On Leave:

Hon. Victor A. Bonghanoy	- Mun. Vice Mayor

Absent:

Hon. Eustaquio R. Bacolod	- SB Member
Hon. Ron Adrian A. Boyonas	- SK Fed. President

MUNICIPAL ORDINANCE NO. 03
Series 2020

AN ORDINANCE REGULATING THE USE AND OPERATION OF VIDEOKE AND KARAOKE MACHINES AND OTHER SIMILAR AMPLIFIED AUDIO SOUND DEVICES IN PUBLIC STREETS AND PLACES IN THE MUNICIPALITY OF UBAY, BOHOL AND PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES.

(Authored by Hon. Joan Abad - Balduman)

Be it Ordained by the Sangguniang Bayan of Ubay, Bohol in session duly assembled, that;

WHEREAS, Section 16 of the Local Government Code of 1991, expressly states that: "Every Local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare";

WHEREAS, barangay residents are accustomed to utilizing open spaces like public streets and road sides to gain wider area for private activity or function, often making use of videoke or karaoke machines or other similar amplified audio devices, usually sheltered in collapsible tents as a form of amusement or recreation;

WHEREAS, the excessive, unnecessary or unusually loud sound from the said audio devices beyond the limit of acceptable level within residences and on the streets, is deemed as noise pollution and cause annoyances, and disturbances, and injures and endangers the comfort, health, peace and safety of others within the municipality;

WHEREAS, even small sari-sari stores in residential areas have also engaged in the business of operating video karaoke machines/units in open spaces and usually coin-operated, undeniably causing overwhelming disturbance in the affected communities;

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WHEREAS, video karaoke joints/establishments have started becoming venues for gambling and betting as well;

WHEREFORE, the Sanggunian in session assembled do hereby enact and ordain as follows:

SECTION 1. TITLE

This Ordinance shall be known as the Videoke and Karaoke Regulation Ordinance.

SECTION 2. DEFINITION OF TERMS

a. Video Karaoke Machine/Unit - Any equipment or musical contrivance comprising of a television set or monitor, video player, amplifier, speakers, microphones and any sound system used for sing-along whereby lyrics of a song with accompanying visual backdrops are seen on a monitor or screen.
b. Coin-Operated Videoke Machine - Similar to (a) but operated with the use of coins.
c. Video Karaoke Joints/Establishments - Any establishment operating and/or maintaining video karaoke machines/units
d. Noise Pollution – also known as noise disturbance; is the disturbing or excessive noise level and that which can still be heard after a distance of at least 50 feet from the source.
e. Sound Amplifying Equipment – means any machine or device for the amplification of the human voice, music or any other sound.
f. Public Right-of-Way – means any street, avenue, alley sidewalk or public space which has been dedicated for use by the general public and the dedication of which has been accepted by government entity.
g. Reasonable Person – an objective standard against which any individual's conduct can be measured. It is used to determine if a breach of the standard of care has occurred, provided a duty of care be proven. The reasonable person would under the same or similar circumstances.
h. Persons – includes any being, natural or juridical, susceptible of rights and obligations or being the subject of legal action.

SECTION 3. PROHIBITIONS

All establishments but not limited to resorts, canteens, stores and other similar establishments operating videoke/karaoke machine and other amplified sound systems are required to secure a barangay permit. Operation of the said sound system will only be allowed until 10:00 pm. Non-compliance to this paragraph shall be penalized as follows:

a. !st Offense – warning and a fine of Php 1000.00
b. 2nd Offense – Seven (7) days Suspension of Operation
c. 3rd and Subsequent Offenses – Revocation of Business Permit and cancellation of operation

All establishments referred to in this section is mandated to put up signages in a conspicuous place where PNP hotline number is displayed.

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No minor shall be allowed to enter any videoke/karaoke establishments unless allowed under the exceptions provided under Section 10 (b) of Republic Act 7610 otherwise known as "An Act Providing for Stronger Deterrence and Special Protection Against Child Abuse, Exploitation and Discrimination, Providing Penalties for its violation and for other purpose".

SECTION 4. EXEMPTIONS

Within residential areas, the use of videoke/karaoke machines during birthdays, other family occasions and celebrations may only be allowed only until 10:00 PM. However, special permits for extension of time for special occasions like fiestas and vespers day, Christmas (Eve) and New Year's (Eve) may be granted by the barangay concerned until 12:00 o'clock midnight provided that provisions of Section 5 (a) and (b) are strictly observed.

That singing and sound therein shall be in moderate manner in order not to unnecessarily annoy and disturb the quiet and comfort of the community. A maximum volume of Ninety (90) decibels during day time and Seventy decibels (70) at night time equivalent to sound that will not reach more than a 100-meter radius. Volume level shall be strictly observed as to maintain tranquility of the community.

The barangay shall not issue a clearance for the operation of the use of the videoke/karaoke system and other amplified devices:

a. At any location within 200 meters from a school, place of worship, and government establishments and institutions;
b. 200 meters from any hospital or other institution caring for the sick or Infirmed;
c. At any location where the barangay, upon investigation, shall determine that the conditions of vehicular or pedestrian traffic or both are such that the use of public street/right-of-way or road side will constitute serious hazard to the safety and comfort of pedestrians or vehicle operators;
d. At any location where the barangay, upon investigation, shall determine that the conditions of over-crowding or other physical conditions are such that the use of public street/right-of-way or road side will deprive the public from the reasonable right to safe and peaceful enjoyment at any public street or other public place.
e. Or at any location where the barangay deems a necessary control should be made, upon investigation and with a justifiable reason without jeopardizing a valid and legitimate action that requires audio amplification.

SECTION 5. REGULATED AMPLIFIED SOUND

In public street/right-of-way and road side, the operation and use of videoke/karaoke machines and other amplified audio device shall be allowed only:

a. upon securing a permit from the barangay who has jurisdiction over the area for amplified audio devices that will be permanently set up
b. The applicant who will secure barangay permit to operate and use such equipments shall fill out form which shall be provided by the barangay and file the same at least three (3) days prior to the date of the intended activity/occasion.

The application form shall describe the nature of the intended activity, the type of audio device, the specific location at which such audio device is to be used or operated and such other pertinent information as is necessary for the barangay to carry out its duties under this section.

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In determining whether the sound is excessive, disturbing, unreasonable and/or unnecessary, and therefore considered as "noise pollution", the following factors incident to such sound may be considered, to wit:

a. Time of the Day;
b. Proximity to residential area, school or place of worship;
c. Whether the sound is recurrent, intermittent or constant;
d. The volume and intensity;
e. Whether the sound has been enhanced in volume or range by any type of electronic or mechanical means; and
f. The character of the area.

SECTION 6. ENFORCEMENT AND ABATEMENT

a. One (1) hour before 10:00 in the evening, the members of the barangay tanod on-duty shall courteously approach and remind the concerned parties to soften or lower the volume and eventually turn off the videoke or sound system at 10:00 P.M. except for those who have secured special permits from their respective barangays under special occasions allowed in Section 4. However, that if such reminder has been obviously ignored or taken for granted by the concerned parties for the second time, the members of the barangay tanod shall call the police to intercede for and on behalf of the barangay and shall be further empowered to enjoin the termination of the activity and or confiscate and turn over the said device to the Business Permit Office.

b. Confiscated video karaoke machines/units shall be under the custody of the Business Permit Office and will only be released upon payment of corresponding penalties and permits.

SECTION 8. PENALTY- Any person found violating the provisions of this Ordinance, except those penalized under Section 3 shall be penalized accordingly:

1st Offense - Fine of One Thousand Pesos (Php1, 000.00)
2nd Offfense - Fine of One Thousand Five Hundred Pesos (Php 1,500.00)
3rd Offense - Fine of Two Thousand Pesos (Php2, 500.00) or one (1) month imprisonment or both at the discretion of the court.
Subsequent offenses – Permanent closure of the establishment

SECTION 9. SEPARABILITY CLAUSE - If any section or provision of this Ordinance is declared unconstitutional or invalid by a competent court, other sections or provisions not affected thereby shall continue to be in full force and effect.

SECTION 10. REPEALING CLAUSE - All ordinances, resolutions, local rules and regulations which are inconsistent with or contrary to the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 11. EFFECTIVITY - This Ordinance shall take effect after its publication in a newspaper of general or local circulation.

ADOPTED this 22nd day of January, 2020.

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Office of the Sangguniang Bayan

(Sgd.) HON. EFREN S. TANJAY
Interim Presiding Officer
Member, Sanggunian Bayan

ATTESTED:

(Sgd.) ALPIOS B. DELIMA, M.A.
Secretary, Sangguniang Bayan

APPROVED:

(Sgd.) HON. CONSTANTINO H. REYES
Municipal Mayor